

HOUSE No. 4749

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, November 19, 2025.

The committee on Aging and Independence, to whom was referred the joint petition (accompanied by bill, House, No. 772) of Hannah Kane, John C. Velis and others for an investigation by a special commission (including members of the General Court) relative to the financial abuse of elders, reports recommending that the accompanying bill (House, No. 4749) ought to pass.

For the committee,

THOMAS M. STANLEY.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing a commission to study the financial abuse of elders.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 (a) The Massachusetts General Court shall initiate a commission to study and
2 draft policies to combat the financial abuse of elders in the Commonwealth.

3 (1) Said Commission shall have three members of the Massachusetts House of
4 Representatives, two appointed by the Speaker of the House and one appointed by the Minority
5 Leader;

6 (2) Said Commission shall have three members of the Massachusetts Senate,
7 two appointed by the President of the Senate and one appointed by the Minority Leader;

8 (3) Said commission shall have two attorneys, admitted to the Massachusetts
9 Bar, who specialize in elder and estate law;

10 (4) Said Commission shall have a representative from an advocacy group,
11 operating in Massachusetts, which has a history of advocating for the interests of the elder
12 population in the Commonwealth;

(5) Said Commission shall have two representatives who are employed by Councils on Aging in the Commonwealth or any organization responsible for administering protective services to elders in the Commonwealth; and

(6) Said Commission shall have a representative from an association or advocacy group, operating in Massachusetts, which has a history of advocating on behalf of the real estate industry.

(7) Said Commission shall have a representative from an association or advocacy group, operating in Massachusetts, which has a background in the financial services industry

(8) Said Commission shall have a representative from the Massachusetts Bankers Association, Inc.

(9) Said Commission shall have a representative from the Cooperative Credit Union Association, Inc.

(b) The commission will specifically study

(1) The economic impact and mechanisms of financial abuse on those over age 60 in the Commonwealth;

(2) The lending and refinancing practices of companies who target customers above the age of 60;

(3) Exploitative transfers of real estate or other valuable property from dependent elders to fiduciaries for significantly less than market value;

33 (4) Fraudulent or deceptive schemes that target elderly persons in the
34 Commonwealth through telemarketing, the internet, or other means; and

35 (5) Any other form of elder financial abuse.

36 (c) Said commission shall file a report that includes policy recommendations
37 prevent or better protect elders from financial abuse. The report shall be filed with the clerks of
38 the house of representatives and the senate. chamber, as well as the Chairmen of the the joint
39 committee aging and independence and the joint committee on financial services, no later than
40 December 31st, 2026.